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Case Number: 26STCV04056 Hearing Date: July 22, 2026 Dept: 509

Soleimani & Associates, APLC v. Liyan Massaband

MOTION TO COMPEL ARBITRATION

MOVING PARTY: Plaintiff Soleimani & Associates, APLC

RESPONDING PARTY(S): Defendant Liyan Massaband

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an action to recover the non-payment of attorney's fees. Plaintiff Soleimani & Associates, APLC (Plaintiff) represented defendant Liyan Massaband (Defendant) in a prior family law matter. Plaintiff alleges Defendant owes \$99,632.81 in past due fees and costs. Plaintiff alleges causes of action for: (1) breach of contract; (2) open book account; and (3) account stated.

Plaintiff now moves to compel the matter to arbitration. Defendant opposed.

TENTATIVE RULING:

Plaintiff's Motion to Compel Arbitration is GRANTED. The action is stayed pending the results of the arbitration.

A Status Review/OSC re: Dismissal is set for July 22, 2027, at 8:30 a.m.

Moving parties to give notice, unless waived.

DISCUSSION:

Motion to Compel Arbitration

1. Legal Standard

"[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence" (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284). "In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made." (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) "Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (California Correctional Peace Officers Ass'n v. State (2006) 142 Cal.App.4th 198, 205.)

"[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.)

"If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. . . ." (Code Civ. Pro. §1281.4.)

2. Analysis

California has a strong public policy in favor of arbitration as an expeditious and cost-effective way of resolving disputes. "Even so, parties can only be compelled to arbitrate when they have agreed to do so." (Avila v. S. California Specialty Care, Inc. (2018) 20 Cal. App. 5th 835, 843.) "The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement." (Ibid.)

An arbitration agreement is a contractual agreement. "General contract law principles include that '[t]he basic goal of contract interpretation is to give effect to the parties' mutual intent at the time of contracting. [Citations.] ... The words of a contract are to be understood in their ordinary and popular sense." [Citations.] (Garcia v. Expert Staffing W., 73 Cal. App. 5th 408, 412–13.)

A. Existence of An Arbitration Agreement

Plaintiff has the initial burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (Gamboa v. Ne. Cmty. Clinic (2021) 72 Cal. App. 5th 158, 165.) "[I]t is not necessary to follow the normal procedures of document authentication." (Condee v. Longwood Mgmt. Corp. (2001) 88 Cal. App. 4th 215, 218.)

The Declaration of Shahram Soleimani states: "[o]n or about August 15, 2022, Defendant, Liyan Massaband ("Defendant") retained my firm Soleimani & Associates, APLC ("Plaintiff"), to represent her in her dissolution matter ("the "Underlying Matter") by signing a written fee agreement ("Agreement"). Attached hereto and marked as Exhibit "A" is a true and correct copy of the Agreement." (Soleimani Decl. ¶3.)

In relevant part, the Agreement provides:

You agree that should any dispute arise between us, relating to the interpretation or performance of this agreement, attorneys' fees and/or costs, or any dispute regarding the nature and quality of the services provided hereunder, including any claims for damages against the attorney or any of its principals and/or associates, whether on a theory of malpractice, negligence, breach of contract, fraud, breach of fiduciary duty or otherwise, we agree with you that such dispute shall be

subject to and submitted to BINDING ARBITRATION. in Los Angeles County, pursuant to the Los Angeles County Bar Association Program, following the procedures set forth in California Code of Civil Procedure, Sections 1282 and 1286; and, that the Arbitrator in such a proceeding may award reasonable attorneys' fees to the prevailing party in the arbitration.

You recognize that submitting a controversy such as this to an arbitrator constitute a waiver of your right to a court or JURY TRIAL as well as the right to appeal the arbitrator's decision, and may also impose certain limitations upon discovery procedures. Despite this fact, you agree, as do we, to arbitrate any controversies that arise between us because of the relative speed and cost savings that often accompanies such arbitration proceedings.

It is further understood that the initiator of the arbitration proceedings shall advance all costs in connection therewith unless the other party files a cross-action in which event the fees and costs of the arbitration shall be borne proportionately by the parties in the ratio that their monetary claims bear to one another subject to ultimate possible re-allocation/re-apportionment at the discretion of the arbitrator. Service of process in connection with any such arbitration proceeding may be made by certified mail at the last known address of the other party. In the event that either party is required to take legal action against the other in connection with this written agreement, the prevailing party, in addition to other rights, shall be entitled to recover attorney's fees and costs whether or not a lawsuit is filed.

(Soleimani Decl., Exh. A at p. 6.)

Plaintiff has therefore met its initial burden to demonstrate an arbitration provision applicable to this current action.

This switches the burden to Defendant, who "bears the burden of producing evidence to challenge the authenticity of the agreement." (Gamboa, supra, 72 Cal.App.5th at p. 165.) Defendant can do this in "several ways," including by "declar[ing] under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (Ibid.)

However, Defendant does not dispute the existence of the arbitration provision, or that the arbitration provision generally covers the dispute here. Instead, Defendant relies upon defenses to enforcement addressed below.

B. Defenses to Enforcement

Defendant argues that Plaintiff has waived its right to arbitration by initiating this instant action. Defendant argues that "Plaintiff waived his right to compel arbitration by failing to commence arbitration and instead filing this lawsuit." (Opp. at p. 3:9-10.)

A motion to compel arbitration may be denied when the contract law defense of waiver is applicable. (Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 583-584.) "To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it." (Id., at p. 584.) The standard of "clear and convincing evidence" requires one to "show that it is 'highly probable' the fact is true." (Ibid.) The knowledge required by waiver may be "actual or constructive." (Outboard Marine Corp. v. Superior Court (1975) 52 Cal.App.3d 30, 41.) An intent to relinquish or abandon "may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it." (Quatch, supra, 16 Cal.5th at p. 584.) This "inquiry is exclusively focused on the waiving party's words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party's subjective evaluation of the waiving party's intent is relevant." (Id., at p. 585.)

Here, Defendant argues that Plaintiff waived arbitration by filing this instant action. Defendant points to the "Notice of Client's Right To Fee Arbitration" which states "[y]ou will LOSE YOUR RIGHT TO ARBITRATION UNDER THIS PROGRAM if:... YOU FILE AN ACTION OR PLEADING IN ANY LAWSUIT WHICH SEEKS A COURT DECISION ON THIS DISPUTE OR

WHICH SEEKS DAMAGES FOR ANY ALLEGED MALPRACTICE OR PROFESSIONAL MISCONDUCT.” (Exhibit 1 to the Opp.)

However, this document does not evidence an intentional waiver of Plaintiff's right to arbitration. First, this notice does not appear to be a contract between the parties but merely a notice to Defendant. Second, this action is not seeking damages for malpractice or professional misconduct. Third, this provision appears to notice Defendant's right to arbitration in a specific program. It does not appear to change any arbitration agreement between the parties. And finally, the same document states “No lawsuit or arbitration proceeding has yet been filed but may be filed if we do not resolve this claim.” (Exhibit 1 to the Opp.) This provision seems to indicate that Plaintiff here may file a lawsuit or proceed in a separate arbitration if the parties do not reach an agreement. Indeed, it appears that this notice was to allow Defendant to agree to arbitration without Court intervention but Defendant but failed to respond. (Soleimani Decl. ¶4, [“On or about December 14, 2023, Defendant was served with a Notice of Client's Right to Fee Arbitration, however, Defendant failed to respond. Thereafter, on February 6, 2026, I filed a Complaint.”])

Finally, the Court does not find Plaintiff's initiation of this action as “clear and convincing evidence” of an intentional relinquishment of their right to arbitration. Plaintiff filed this motion on May 11, 2026, only ten days after Defendant filed their answer to this complaint. These actions are not indicative of an intentional waiver necessary to deny a motion to compel arbitration.

Accordingly, Plaintiff's Motion to Compel Arbitration is GRANTED.

IT IS SO ORDERED.

Dated: July 22, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.